

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 14, 2018

Honorable Roger A. Luebs
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501

Re: Adams, Jamall Earl
CDC No.: AE9384
Case No.: RIF153181
Date of Sentence: 10/6/2010

Dear Honorable Roger A. Luebs:

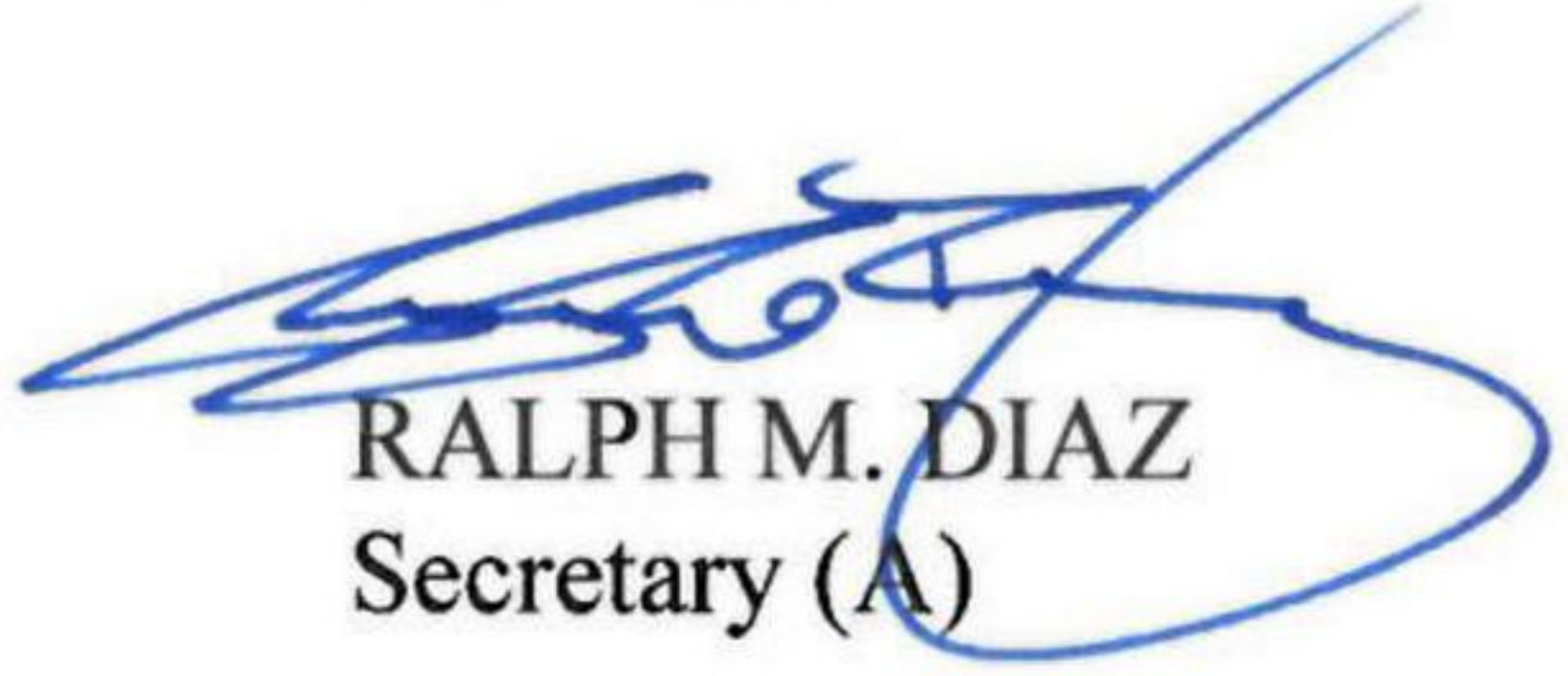
The purpose of this letter is to provide the court with authority to resentence Jamall Earl Adams pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Adams was sentenced in 2010, and was convicted of section 245, subdivision (A)(1), Assault w/deadly. The trial court sentenced inmate Adams on 10/6/2010. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Adams's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Adams's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge
Riverside District Attorney
Private Attorney

Date 10-07-10

AE9384

CR-290

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE [NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Riverside		FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF RIVERSIDE OCT 07 2010 <i>[Signature]</i>	
PEOPLE OF THE STATE OF CALIFORNIA vs.	DOB: 06/24/1989	RIF153181	-A
DEFENDANT: JAMALL EARL ADAMS			-B
AKA:			-C
CII#:			-D
BOOKING #: 200944658	☐ NOT PRESENT		
COMMITMENT TO STATE PRISON	☐ AMENDED		
ABSTRACT OF JUDGMENT	☐ ABSTRACT		
DATE OF HEARING: 10/06/2010	DEPT. NO. 52	JUDGE: Roger A Luebs	
CLERK: P. BRAWDY	REPORTER: <i>[Signature]</i>	PROBATION NO. OR PROBATION OFFICER: ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE: Michael Lough		COUNSEL FOR DEFENDANT: PVT-Richard Swanson ☐ APPTD	

1. Defendant was convicted of the commission of the following felonies:

☒ Additional counts are listed on attachment

1 (number of pages attached)

COUNT	CODE	SECTION NO	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DAY/YR)	CONVICTED BY			TERM (L/M/U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to dep 5)	954 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
1	PC	664/215(A)	Attempted carjac	09	09/27/10			X	M	X						(5)	
2	PC	459*	1st Burglary	09	09/27/10			X	M							8	
3	PC	459*	1st Burglary	09	09/27/10			X	M	X						(8)	
4	PC	496(A)	Stolen Property/	09	09/27/10			X	M						X		
5	PC	186.22(A)	Criminal Street	09	09/27/10			X	M						X		
6	PC	186.22(A)	Criminal Street	09	09/27/10			X	M						X		

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	TOTAL
2	PC 186.22(B)	05							5
3	PC 186.22(B)	(05)							
7	PC 12022.7(a)	(03)	PC 186.22(B)	(03)					

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series).

List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	ENHANCEMENT	TIME IMPOSED OR S FOR STAYED	TOTAL

4. ☐ Defendant was sentenced per ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes)☐ PC 1170(a)(3) Pre-confinement credits equal or exceed time imposed (Paper Commitment) Deft. ordered to report to local Parole Office upon release

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: 6

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 13

PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: JAMALL EARL ADAMS			
RIF153181	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 200.00 per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked
Case B: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked
Case C: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked
Case D: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case B: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim names(s), if known, and amount breakdown in item 11, below ☐ * Victim names(s) in probation officer's report

c. Fine(s):

Case A: \$ _____ per PC 1202.5; \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case B: \$ _____ per PC 1202.5; \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case C: \$ _____ per PC 1202.5; \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case D: \$ _____ per PC 1202.5; \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ 240.00 per PC 1465.8

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA Pursuant to PC 296 c. ☒ AIDS pursuant to PC 1202.1 d. ☐ other (specify)

11. Other orders (specify):

Pay total of \$240.00 for criminal conviction assessment (70373 GC) (\$30 ea convicted charge); Payable to Division of Adult Institutions.

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c

Defendant's race/national origin: Black

13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing
b. ☐ at resentencing per decision on appeal
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☐ Other (specify)

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	60	53	7 ☒ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentenced Pronounced		Time Served in State Institution	
10/06/10		☐ DMH ☐ CDCR ☐ CRC	

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections.
☐ other (specify)

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action

DEPUTY'S SIGNATURE

M. Cope

DATE

10/07/2010

JAMALL EARL ADAMS

-A

-3-

—C

-D

- This attachment page number: 1

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4. TOTAL TIME IMPOSED ON THIS ATTACHMENT PAGE:

F